

## 26STCP00338 26STCP00338

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-27

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Case Number: 26STCP00338 Hearing Date: August 27, 2026 Dept: 25

HEARING DATE: Thurs, August 27, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Lakeland

Villa, LLC v. Interiano PET. FILED: 01-22-26

CASE NUMBER: 26STCP00338

NOTICE: OK

PROCEEDINGS: MOTION

FOR AWARD OF ATTORNEY'S FEES AND COSTS

MOVING PARTY: Petitioner

Lakeland Villa, LLC

RESP. PARTY: None

MOTION FOR ATTORNEY FEES AND COSTS

(Civ. Code §§ 798.85, 1717)

TENTATIVE RULING:

The Court GRANTS IN PART Lakeland Villa, LLC's motion for attorney fees and costs in the reduced amount of \$15,600.41, reflecting \$14,934 in attorney fees and \$666.41 in costs.

Lakeland is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)  
OK

[X] 16/21  
Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None  
filed as of August 25, 2026 [ ] Late [X]  
None

REPLY: None  
filed as of August 25, 2026 [ ]  
Late [X] None

ANALYSIS:

Lakeland  
Villa, LLC petitioned the Court for a permanent injunction against William E. Interiano pursuant to Civil Code section 798.88. The Court granted the petition and signed the submitted order on May 19, 2026. Lakeland now moves for attorney fees and costs pursuant to Civil Code section 798.85. Interiano has not opposed this motion.

Attorney  
fees are allowable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Civil Code section 1717 authorizes fees for a prevailing party when a party sued on a contract that allows for them. The rental agreement between Lakeland and Interiano provides that “the prevailing party shall be entitled to reasonable attorney[] fees and costs.” Additionally, Civil Code section 798.85 allows for recovery of reasonable attorney fees and costs by the prevailing party in any action pursuant to Civil Code section 798.88. Given that Lakeland is the prevailing party in this action, Lakeland is entitled to recover reasonable attorney fees and costs on contractual and statutory grounds.

The Court's objective is to award those fees at the fair-market value for the attorneys' work. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) That can be done by multiplying the number of hours the attorneys reasonably expended by a reasonable hourly rate. (Id. at p. 1132, 1134.)

Lakeland seeks attorney fees based on attorney Gregory B. Beam's hourly rate of \$400.00, attorney Norman Paul Breen's hourly rate of \$375.00, and paralegal Sandra Beck's hourly rate of \$140.00. These hourly rates are reasonable. Beam's declaration states the services rendered by his firm include issuing two separate notices, preparing and filing the petition, communicating with witnesses, preparing and filing declarations, attending two hearings due to Interiano's request for continuances, and obtaining the injunction order. The number of hours expended before this motion includes Beam's work of 24.5 hours, Breen's work of 11.3 hours, and Beck's work of 13.2 hours, which amounts to \$15,885.50. This amount is almost reasonable.

The Court reviewed Beam's billing records and will not allow a few of the items that were block-billed. There were several other items that, in the Court's view, were billed at more time than they should have taken. The Court therefore reduces this portion of the fee award to \$13,771.50.

Lakeland also seeks attorney fees for bringing its fee motion, in 1.5 hours of Breen's work drafting it, one hour of Beam's work reviewing and revising, two hours for Beam's appearance at this hearing, and if an opposition is filed, two hours for Beam's review and preparation of a reply. As there was no opposition filed, two hours of Beam's total work are deducted. Likewise, the Court does not anticipate this to be a long hearing. It will allow \$962.50 for time preparing the motion and half an hour of Beam's time for the hearing, for a total of \$1,162.50.

That makes a total of \$14,934.00 in fee.

The \$666.41

in costs Lakeland requests are set forth in the memorandum of costs and include filing and motion fees, service of process, and fees for electronic filing or service. These requests are proper and reasonable.

Accordingly,  
the Court GRANTS Lakeland's motion for attorney fees and costs in the reduced amount of \$15,600.41, comprising \$14,934.00 in attorney fees and \$666.41 in costs.

Lakeland  
is to give notice.